

## RESOLUTION OF RIGHTS PROCEDURE

Having reviewed the complaint registered on August 2, 2023, with this Agency and having carried out the procedural actions provided for in Title VIII of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the Guarantee of Digital Rights (hereinafter LOPDGDD), the following FACTS have been established:

FIRST: A.A.A. (hereinafter, the complainant) exercised the right of Access against XFERA MÓVILES, S.A. (hereinafter, the respondent) without their request receiving the legally established response. The complainant submitted a request for access on June 7, 2023, to the respondent, and despite having sent a reminder of the same on July 5, 2023, access to the requested data has not been provided to date, thus breaching the one-month deadline established by law. The complainant also states that the respondent company (YOIGO) has put up obstacles by considering that a complaint made through a Consumer Organization (OCU) is not a valid means for exercising the rights recognized by the GDPR and the LOPDGDD.

The complainant also informs that the respondent forced them to request a mobile device in order to apply a discount on the contracting of internet and mobile phone services. When they received said device, they had to return it to the company, as it was not the correct one.

Furthermore, the complainant indicates that, after receiving the invoice, they found that it exceeded the agreed amount. Thus, they request the company to refund the excess amount (195.07 euros) or, if they do not do so, to send them a copy of all communications and recordings that have occurred between the complainant and the respondent, from the contracting until the day they sent the email (June 7, 2023).

The channel followed by the complainant is not the one provided by the respondent, although they responded to the complainant's first email.

SECOND: On November 6, 2023, this Agency resolves regarding the complaint filed by the complainant and their unattended access request. It concludes by archiving the complaint as follows: "...Once the reasons presented and the recording provided by the respondent have been analyzed, this Agency considers, in accordance with the doctrine of the National Court, as stated -among others- in its Judgment of April 29, 2010, which argues that: "the issue is not to determine whether the appellant processed the complainant's personal data without their consent, as if they exercised or did not exercise reasonable diligence when trying to identify the person with whom they signed the contract," that the respondent has acted with a diligence normally required in a service operation such as the contracted ones, without any infringement being appreciated within the jurisdiction of the AEPD, therefore, the opening of a sanctioning procedure is not warranted. All of this is without prejudice to the Agency applying the investigative and corrective powers it holds, which may carry out subsequent actions related to the data processing referred to in the complaint. For all the above, by the Director of the Spanish Agency for the Protection of Data, IT IS AGREED: FIRST: TO ARCHIVE the complaint."

THIRD: The complainant, in total disagreement with the resolution, submits a request for reconsideration which is resolved on June 7, 2024, favorably, leading to the current rights procedure with the following arguments:

"... The complaint filed related to this appeal had no other purpose than to ensure compliance by the respondent with their obligations regarding the access request provided for in the GDPR, which to this day has still not been processed. I reiterate the obligation to process any access request regardless of the means through which it was exercised. For all the above, I request the Agency to: - Guarantee the right of access and, - assess the respondent's non-compliance in providing access and imposing obstacles to its exercise. Furthermore, the rest of the assessments made by the respondent regarding the complaint concerning the contracting are outside the scope of the access request, which may be carried out through the appropriate channels and before the competent bodies and authorities for the assessment and resolution of these. No further matters."

FOURTH: In light of the events, on June 10, 2024, the original complaint is again forwarded to the

respondent, along with the request for reconsideration submitted by the complainant and the resolution of said request, so that within a period of fifteen working days they may present any allegations they deem appropriate.

The respondent submits the following allegations:

“...in the present file with reference EXP202313151, on June 24, 2024, my represented party has proceeded to fulfill the right of access of the interested party Mr. A.A.A., sending him a response with the transcriptions of the calls dated April 28, 2023, and June 7, 2023, respectively, from the mailbox \*\*\*EMAIL.1 This is based on the interpretation of the right of access, established in Article 15, paragraph 1 of the GDPR, extended to the personal data that affect or concern the interested party, and the favorable assessment of the request for reconsideration filed by Mr. A.A.A. against the resolution of the Spanish Agency for the Protection of Data issued on November 6, 2023.

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Finally, attached for these purposes, as Document Number 1, is the transcript of the call from April 28, 2023, and as Document Number 2, the transcript of the call from June 7, 2023.”

## LEGAL GROUNDS

I

### Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, and 64.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that: “The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued for its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures.”

II

### Preliminary Issues

In accordance with the provisions of Article 55 of the GDPR, the Spanish Agency for Data Protection is competent to perform the functions assigned to it in Article 57, including the enforcement of the Regulation and promoting awareness among data controllers and processors regarding their obligations, as well as addressing complaints filed by a data subject and investigating, as appropriate, the reasons for such complaints.

Correspondingly, Article 31 of the GDPR establishes the obligation of data controllers and processors to cooperate with the supervisory authority that requests it in the performance of its functions. In the case that they have appointed a data protection officer, Article 39 of the GDPR assigns this officer the function of cooperating with said authority.

Article 58.2 of the GDPR grants the Spanish Agency for Data Protection a series of corrective powers for the purpose of rectifying any infringement of the GDPR, including “ordering the data controller or processor to address requests for the exercise of the rights of the data subject under this Regulation.”

III

### Rights of Individuals Regarding Personal Data Protection

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The rights of individuals regarding personal data protection are regulated in Articles 15 to 22 of the

GDPR and Articles 13 to 18 of the LOPDGDD. The rights of access, rectification, erasure, objection, the right to restriction of processing, and the right to data portability are contemplated.

The formal aspects related to the exercise of these rights are established in Articles 12 of the GDPR and 12 of the LOPDGDD.

Additionally, consideration is given to what is expressed in Recitals 59 and following of the GDPR.

In accordance with the provisions of these regulations, the data controller must establish means and mechanisms to facilitate the exercise of rights by the data subject, which shall be free of charge (without prejudice to the provisions of Articles 12.5 and 15.3 of the GDPR), and is obliged to respond to requests made no later than one month, unless it can demonstrate that it is unable to identify the data subject, and to express its reasons in case it does not intend to comply with such request. The burden of proof regarding compliance with the obligation to respond to the request for the exercise of rights made by the affected party lies with the data controller.

The communication addressed to the data subject regarding their request must be expressed in a concise, transparent, intelligible, and easily accessible manner, using clear and plain language.

#### IV

##### Right of Access

In accordance with the provisions of Article 15 of the GDPR and Article 13 of the LOPDGDD, “the data subject has the right to obtain from the data controller confirmation as to whether or not personal data concerning them is being processed and, if so, the right of access to the personal data.”

Regarding the right of access to personal data, according to the provisions of Article 13 of the LOPDGDD, when the exercise of the right refers to a large amount of data, the data controller may request the affected party to specify the “data or processing activities to which the request refers.” The right shall be deemed granted if the data controller provides remote access to the data, being considered as addressed the request (although the data subject may request the information referred to in the aspects provided in Article 15 of the GDPR).

The exercise of this right may be considered repetitive if it is exercised more than once within a six-month period, unless there is a legitimate reason for it.

On the other hand, the request will be considered excessive when the affected party chooses a means other than that offered which incurs a disproportionate cost, which shall be borne by the affected party. Like the other rights of the data subject, the right of access is a personal right. It allows the citizen to obtain information about the processing.

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that is being made of your data, the possibility of obtaining a copy of the personal data concerning you that is being processed, as well as information, in particular, about the purposes of the processing, the categories of personal data concerned, the recipients or categories of recipients to whom the data may be communicated, the expected retention period or criteria for retention, the possibility of exercising other rights, the right to lodge a complaint with the supervisory authority, the available information about the source of the data (if it has not been obtained directly from the data subject), the existence of automated decisions, including profiling, and information about transfers of personal data to a third country or to an international organization. The possibility of obtaining a copy of the personal data being processed shall not adversely affect the rights and freedoms of others.

#### V

##### Conclusion

In the case analyzed here, the claimant exercised their right of Access and after the period established in the aforementioned regulations, their request received a response that this Agency deemed adequate, and the complaint was filed.

Later, the claimant submitted a request for reconsideration which, once analyzed, is upheld and gives rise to the current rights procedure. Now, having analyzed all the documentation provided by both parties, we find that the reason for the discrepancy is that the respondent has not responded to the

request for the exercise of the right of access to all recordings of the calls made, as requested by the claimant.

In this case, however, it is noted that during the processing of the complaint that gives rise to this procedure, formulated precisely due to the lack of an adequate response to the request for the exercise of rights, the respondent has provided documentation of the transcription of the recordings of two calls, evidencing the communication sent to the interested party in accordance with the right, but does not provide the transcription of the other calls that the claimant states they made to XFERA MÓVILES, S.A. This response, therefore, occurs after the established deadline has passed.

Consequently, it is appropriate to partially uphold the complaint that gave rise to this procedure, because the respondent has claimed regarding the right of access to the rest of the recordings of the appellant that it is a case of impersonation and that the voice belongs to another person, therefore access cannot be granted. However, this assertion cannot be accepted as the right of access includes data concerning the claimant in cases of impersonation.

In light of the cited provisions and other generally applicable regulations, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO PARTIALLY UPHOLD the complaint filed by A.A.A. considering that the provisions of Article 15 of the GDPR have been violated and to urge XFERA MÓVILES, S.A. with NIF A82528548, to, within ten working days following the notification of this resolution, send to the claimant a certification that fully addresses the requested right or provides a reasoned denial, indicating the reasons why the request for access to the rest of the calls made by the claimant cannot be granted, in accordance with the provisions established in the body of this resolution. The actions taken as a result of this Resolution must be communicated to this Agency within the same timeframe. Non-compliance with this resolution could result in the commission of an infringement of art. 83.6 of the GDPR, classified as very serious for the purposes of prescription in article 72.1.m) of the LOPDGDD, which will be sanctioned in accordance with art. 58.2 of the GDPR.

SECOND: NOTIFY this resolution to A.A.A. and to XFERA MÓVILES, S.A.

In accordance with the provisions of article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with art. 48.6 of the LOPDGDD, and in accordance with the provisions of article 123 of the LPACAP, the interested parties may optionally file a request for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file an administrative contentious appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of article 25 and section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in article 46.1 of the aforementioned Law. 1381-090823

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